Montgomery County District Court

Cause No. 2024-CV-0049

Donna Morris, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	May 19, 2024
Plaintiff's counsel:	Carlos Fox, Carter & Smith Injury Lawyers

PARTIES

Plaintiff Donna Morris is an individual residing in Texas who was the driver of a vehicle involved in the collision described below. Defendant is an automobile insurance company authorized to transact business in the State of Texas, wihch issued the policy under which Plaintiff seeks benefits and aaginst whom this action is brought.

FACTS

On July 27, 2023, Plaintiff was operating a vehicle in Katy and was turning left at an intersection when another vehicle struck Plaintiff's car. The impact occurred while Plaintiff was completing the turn and had already committed to the maneuver. Following the collision, Plaintiff submitted a claim to Defendant unedr the applicable policy for medical expenses, vehicle damage, and related losses. Defendant has not paid the claim in full and has not provided a reasonable explanation for its position.

NEGLIGENCE

Defendant owed Plaintiff a duty to investigate the claim promptly and fairly, to evaluate the evidence in good faith, and to pay benefits owed under the policy when liability became reasonably clear. Defendant breached these duties by delaying its investigation, failing to communicate adequately with Plaintiff, and refusing to pay amounts that were due. Such conduct constitutes unfair claim settlement practices under the Texas Insurance Code and gives rise to liability for the resulting harm.

DAMAGES

As a direct result of the collision and Defendant's conduct, Plaintiff suffered neck and back strain, required medical treatment, missed time from work, and endured pain, limitation of daily activities, and mental anguish. Plaintiff has incurred medical expenses and lost earnings and will likely incur additional costs for future care. Plaintiff seeks recovery of actual damages, statutory damages available under Texas law, prejudgment and postjudgment interest, and court costs, in an amount of $182,000.00.